Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

**HON. Donald F. Gaffney**

**Counsel and Parties Please Note:**
**Law and Motion in Department N16 is heard on Wednesdays at 9:00 a.m.**

**Date: July 1, 2026**

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

**NOTE:** After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

**If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.**

| # | Case Name | Tentative |
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| 1 | Clarke vs. Niguel Shores Community Association | **TENTATIVE RULING:**<br><br>**Motion 1. Demurrer to FAC**<br><br>Defendant Roslyn M. Zankich demurs to the FAC of Plaintiff *in pro per* Deborah Clarke. For the following reasons, the demurrer is OVERRULED.<br><br>**Standard on Demurrer**<br><br>In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-1405.) Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) A demurrer tests only the sufficiency of the complaint; a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of |

judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 n.7.)

Although courts should take a liberal view of inartfully drawn complaints (*see* Code Civ. Proc., § 452), it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; *see* Code Civ. Proc., § 425.10(a).)

**<u>First Cause of Action (Breach of Contract)</u>**

Defendant argues Plaintiff does not address the court's previous order sustaining demurrer and that the FAC alleges no privity of contract between the parties, no specific facts of breach, and no causation or damages tied to Defendant Zankich's conduct.

The elements of a cause of action for breach of contract are: (i) existence of the contract; (ii) Plaintiff's performance or excuse for nonperformance; (iii) Defendant's breach; and (iv) damage to plaintiff resulting therefrom. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811.)

The court sustained Defendant Zankich's demurrer to the original complaint on the ground "the Complaint does not allege Plaintiffs performed their obligations under the CC&Rs or have been excused f[rom] nonperformance." (ROA # 58 [11/26/2025 Minute Order].) The FAC corrects that defect, alleging Plaintiff Clarke has performed her obligations under the CC&Rs, having "faithfully paid quarterly assessments, special assessments, and contributed positively to the community." (FAC at 16:26-17:8.)

The FAC also alleges facts to support the remaining elements, including: (i) existence of a valid contract binding the parties, the CC&Rs (FAC 3:1-14); breaches by Defendant Zankich, including raising the roof height and modifying the roof line (FAC 25:9-26:6), placing tresses above the existing roof (*see* FAC 9:8-10:13, 18:17-20:11), constructing a new structure running adjacent to the length of the easement area (FAC 22:13-17), and altering the direction and flow of drainage such that all water from Defendant Zankich's property drains upon Plaintiff's home (FAC at 24:8-25:8); and damage therefrom (see, e.g., FAC at 24:11-26:6 [alleging drainage problems and obstruction of view], 28:3-24).

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| | | To the extent Defendant argues the breaches are pled with insufficient specificity, Defendant overlooks established case law providing a plaintiff need only plead such facts as are necessary "to acquaint a defendant with the nature, source and extent of his claims" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1376 ["a complaint is adequate so long as it apprises the defendant of the factual basis for the claim"]). The allegations in the FAC are sufficient to put Ms. Zankich on notice of the nature of Plaintiff's claims.<br><br>Moving Defendant is ordered to give notice.<br><br>**<u>Motion 2. Motion to Strike</u>**<br><br>Defendant Roslyn M. Zankich moves to strike the First Amended Complaint ("FAC") of Plaintiff *in pro per* Deborah Clarke. For the following reasons, the motion is DENIED.<br><br>Defendant argues the court should strike Plaintiff's complaint as untimely filed.<br><br>Pursuant to Code of Civil Procedure Section 436 the court may, upon a motion made or at any time in its discretion, strike out "any irrelevant, false, or improper matter inserted in any pleading." A motion to strike is commonly invoked to challenge pleadings filed in violation of a deadline, court order, or requirement of prior leave of court. (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 529, citing *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613.)<br><br>The court finds the circumstances here do not justify striking Plaintiff's amended complaint. The court ruled on two successive demurrers, 11/26/2025 and 12/10/2025. Following the second ruling, the court granted Plaintiff 30 days to file and serve an amended complaint. Plaintiff did so, filing and serving the FAC on 01/06/2026.<br><br>Moving Defendant to give notice.<br><br>**<u>Motion 3. Motion to Strike</u>**<br><br>Defendant Niguel Shores Community Association ("Defendant Association") moves to strike the entirety or portions of the First Amended Complaint ("FAC") of Plaintiff *in pro per* Deborah Clarke. |

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| | | For the following reasons, the motion is DENIED in part and GRANTED in part.<br><br>The following language is HEREBY STRICKEN from Plaintiff's FAC: "The details of this case and the conduct of Defendants Niguel Shores Community Association and Roslyn Zankich, would allow an award for punitive damages. Plaintiff seeks punitive damages to deter defendants Niguel Shores Community Association and Roslyn Zankich from engaging in this type of conduct ever again" (FAC at 34:20-24); and "10) For punitive damages" (FAC at 35:22).<br><br>**<u>Standard on Motion to Strike</u>**<br><br>Pursuant to Code of Civil Procedure Section 436 the court may, upon a motion made or at any time in its discretion, strike out "any irrelevant, false, or improper matter inserted in any pleading." A motion to strike is commonly invoked to challenge pleadings filed in violation of a deadline, court order, or requirement of prior leave of court. (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 529, citing *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613.)<br><br>**<u>Timeliness</u>**<br><br>Defendant Association moves to strike Plaintiff's complaint as untimely filed.<br><br>The FAC was timely filed. On 12/10/2025, the court granted Plaintiff 30 days to file and serve an amended complaint that addresses the issues in the court's ruling. (ROA # 65.) Plaintiff did so, filing and serving the FAC on 01/06/2026.<br><br>**<u>Punitive Damages</u>**<br><br>Defendant Association moves to strike the punitive damages allegations.<br><br>Punitive damages are available in actions "for breach of an obligation not arising from contract." (*See* Civ. Code, § 3294, subd. (a).) In the absence of an independent tort, punitive damages may not be awarded for breach of contract, even where the defendant's conduct in breaching the contract was willful, fraudulent or malicious. (*Cates Constr., Inc. v. Talbot Partners* (1999) 21 Cal.4th 28, 61.)<br><br>Here, Plaintiff's sole cause of action is for breach of contract. Plaintiff cannot recover punitive damages on this claim. |

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| | | **<u>Leave to Amend</u>**<br><br>Plaintiff requests leave to amend to add a claim for negligence.<br><br>In ruling on a motion to strike, the court employs the same liberality to amend as used for demurrers. It is an abuse of discretion to deny leave to amend if there is any reasonable possibility the plaintiff can cure the defect. (*See Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168; *Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 360.)<br><br>Plaintiff here proposes amending the complaint to add a negligence claim. Because a negligence claim may support punitive damages (*see, e.g., Taylor v. Superior Court* (1979) 24 Cal.3d 890), the court finds it appropriate to grant Plaintiff leave to amend to add the proposed negligence claim.<br><br>Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff shall file and serve the amended complaint within 30 days of service of the notice of ruling.<br><br>Moving Defendant to give notice. |
| 2 | Martin vs. FCA US LLC | **TENTATIVE RULING:**<br><br>For the reasons set forth below, Defendant FCA US, LLC's Demurer to Plaintiff's First Amended Complaint is OVERRULED as to the 1st through 6th Causes of Action.<br><br>Defendants FCA US, LLC shall file an answer or other pleading in response to the First Amended Complaint for Violation of Statutory Obligations within 30 days of service of the notice of ruling. (See Cal. Rules of Court rule 3.1320(j).)<br><br>**<u>Legal Standard on Demurrer</u>**<br><br>A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (*Lambert v. Carneghi* (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what |

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| | | plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.)<br><br>On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)<br><br>A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail, which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare conclusions of law are insufficient. (Code Civ. Proc., §§ 425.10(a), 459; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-50; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1126; *Doheny Park Terrace HOA v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1098-99; *Berger v. California Insurance Guarantee Assn* (2005) 128 Cal.App.4th 989, 1006.)<br><br>**Civil Procedure Code Section 871.21(b)**<br><br>Defendant first contends that the 1st through 3rd Causes of Action are barred by Civil Procedure Code section 871.21(b), which states that "an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle." (Code Civ. Proc., § 871.21, subd. (b).) Section 871.20, in turn, states that "this chapter applies to an action seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty." (Code Civ. Proc., § 871.20, subd. (a).)<br><br>Plaintiff contends that its 3rd Cause of Action is brought pursuant to Sections 1793.2(a), which is not mentioned in Section 871.20. Section 1794, however, is expressly included in Section 871.20. Section 1794 is the procedural vehicle by which warranty claims under Section 1791.1, 1792, ***1793.2(a)***, and 1795.5 are brought. (See Civil Code § 1794 [Any buyer of consumer goods who is damaged by a failure to |

comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief."].) Thus, the 1st through 3rd Causes of Action are controlled by Sections 871.20 and 871.21(b).

However, in order for Sections 871.20 and 871.21(b) to apply, a manufacturer must "elect to be governed by this chapter." (Code Civ. Proc., § 871.29, subd. (a)(1); see also Code Civ. Proc., § 871.30 ["Within 30 days of the effective date of the act adding this section, a manufacturer may elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs."].)

In this case, Defendants point to no allegations within the FAC showing that they have opted in. In addition, Defendants have not asked this court to take judicial notice of the fact that they have opted in. Thus, the court will overrule the demurrer on this basis. However, even if the Defendant had opted in, Section 871.21 would not bar the 1st through 3rd Causes of Action.

Here, the FAC alleges that Plaintiffs and Defendant entered into a warranty contract on December 1, 2018. (See FAC, ¶ 7). It can be reasonably inferred from this allegation that the subject vehicle was delivered on that date and Plaintiff does not argue to the contrary. Therefore, under Section 871.21(b), this action had to be filed within six years of delivery or no later than December 1, 2024.

However, Section 871.21 did not become effective until January 1, 2025. (See Stats. 2024, c. 938 (A.B.1755), § 1.) Thus, when it became effective, Section 871.21, if applied retroactively, would bar the 1st through 3rd Causes of Action as of December 1, 2024.

Section 871.21 is a statute of repose and neither Plaintiff nor Defendant cited to any cases involving the retroactive application of statutes of repose, nor is the court aware of any.

However, in the context of statutes of limitations, the Court of Appeal has held that "retrospective application of a shortened limitations period is permissible provided the party has a reasonable time to avail himself of his remedy before the statute cuts off his right." (*Aronson v. Superior Court* (1987) 191 Cal.App.3d 294, 297.)

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| | | This holding is "one of constitutional dimension" because: In California, statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but the court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff's right. If the time left to file suit is reasonable, no such constitutional violation occurs, and the statute is applied as enacted. If no time is left, or only an unreasonably short time remains, then the statute cannot be applied at all." (*Ibid.*)<br><br>This rationale applies to statutes of repose even more than statutes of limitations because a statute of repose "does not cut off an existing right of action, but rather provides that nothing which happens thereafter can *be* a cause of action." (*Inco Development Corp. v. Superior Court* (2005) 131 Cal. App. 4th 1014, 1020, italics original). Thus, a statute of repose does not "in effect" eliminate a right; it directly eliminates a right.<br><br>Other states apply a similar rule to the retroactive application of statutes of repose where the cause of action accrues before the date of the statute of repose. (See *Mega v. Holy Cross Hosp.* (1986) 111 Ill.2d 416, 422 [where cause of action accrues prior to effective date of statute of repose, plaintiffs are entitled to reasonable period of time following effective date in which to bring their actions]; *Groch v. General Motors Corp.* (2008) 117 Ohio St. 3d 192, 226 [where cause of action has accrued before effective date of statute of repose and statute of repose gives plaintiff unreasonably short period of time in which to file suit, application of statute of repose is unconstitutionally retroactive].)<br><br>One Central District decision on section 871.21 held: "["Applying that standard, Section 871.21 cannot be invoked here. Defendant's argument would necessarily involve a retroactive application of Section 871.21 because it would use a statute effective on January 1, 2025, to dismiss claims after June 2024. But Defendant does not point to any legislative history indicating that Section 871.21 was intended to apply retroactively." ((*Galdamez v. FCA US LLC* (C.D. Cal., Mar. 23, 2026, No. 2:25-CV-10618-HDV-MAR) 2026 WL 1047004, at *3).<br><br>Here, the FAC alleges a failure by Defendants to repair the subject vehicle under the warranty as early as October 22, 2019, and through to July 26, 2024, and beyond. (See FAC, ¶¶ 14-20.) Thus, Plaintiffs' causes of action accrued before the effective date of Section 871.21. Further, the statute of repose provides no reasonable time period for Plaintiffs to bring their claims after its effective date. In other words, on January 1, 2025, the day it became effective, Section 871.21, if |

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| | | applied retroactively, eliminated Plaintiff's right to bring their 1st through 3rd Causes of Action. Such an application violates Plaintiffs Due Process rights. Nor was the failure to provide for a reasonable period of time harmless, as it eliminated Plaintiff's claims before the statute was even effective.<br><br>Therefore, the court will overrule the demurrer on this basis.<br><br>**<u>Statute of Limitations</u>**<br><br>Defendant next asserts that the $4^{th}$ and 6th Causes of Action are barred by the statute of limitations.<br><br>"A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.'" (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781, quoting *Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal.App.4th 1397, 1403, citations omitted.)<br><br>**A. Fourth Cause of Action for Breach of Implied Warranty of Merchantability**<br><br>FCA argues that Plaintiffs' fourth cause of action fails because Plaintiff failed to file this claim within four years.<br><br>Implied warranty claims are subject to a four-year statute of limitations. Comm. Code, § 2725; *Montoya v. Ford Motor Co*. 46 Cal.App.5th 493, 495 (2020).<br><br>The implied warranty of merchantability, however, may be breached by a latent defect undiscoverable at the time of sale. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304). Indeed, "[u]ndisclosed latent defects ... are the very evil that the implied warranty of merchantability was designed to remedy." (*Id*. at 1305). "In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery." (I*d*.) "Thus, although a defect may not be discovered for months or years after a sale, merchantability is evaluated as if the defect were known." (*Id*.)<br><br>Here, the court finds that Plaintiffs have adequately alleged that latent defects that breached the implied warranty of merchantability existed |

at the time of the purchase—even if discoverable later. Plaintiffs allege:

- "Plaintiff purchased the Subject Vehicle as manufactured with FCA's defective engine." (FAC, ¶ 29).

- "Plaintiff is informed, believes, and thereon alleges that FCA knew since prior to Plaintiffs purchasing the Subject Vehicle, that the 2019 Ram 1500 vehicles equipped with the 5.7L engine have one or more defects that can result loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine (the "Engine Defect")." (FAC, ¶ 30).

- "Plaintiff is informed, believes, and thereon alleges that prior to Plaintiff acquiring the Vehicle, FCA was well aware and knew that the Vehicle was defective but failed to disclose this fact to Plaintiffs at the time of sale and thereafter." (FAC, ¶ 32).

- "The subject vehicle was sold with one or more latent defect(s) set forth above. The existence of the said latent defect(s) constitutes a breach of the implied warranty because the Vehicle (1) does not pass without objection in the trade under the contract description, (2) is not fit for the ordinary purposes for which such goods are used, (3) is not adequately contained, packaged, and labelled, and (4) does not conform to the promises or affirmations of fact made on the container or label." (FAC, ¶ 86).

These allegations, therefore, allege that the defects existed at the time of the sale. Plaintiff, therefore, sufficiently alleged a latent defect existed within the time period of the implied warranty of merchantability. Plaintiff alleges that he took the vehicle in for repair between October 22, 2019, and July 26, 2024. (FAC, ¶ 14-19). Plaintiff also alleges "Plaintiff discovered Defendants' wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following FCA's unsuccessful attempts to repair them." (FAC, ¶ 52).

Viewing Plaintiff's allegations in a manner that is most favorable to Plaintiff, Plaintiff appears to allege that, as of July 26, 2024, the defects for which Plaintiff presented the vehicle could not have been repaired and, therefore, Plaintiff could not have discovered the latent defect until July 26, 2024. Assuming that a jury finds that Plaintiff's conduct between October 22, 2019, and July 26, 2024, was reasonably diligent, then the same factfinder could also reasonably find that Plaintiff's cause of action began to accrue on July 26, 2024, when Plaintiff

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| | | discovered the defect. Plaintiff's filing the complaint on May 29, 2025, less than one year later, therefore, would meet the applicable statute of limitations.<br><br>The demurrer is, therefore, overruled as to the fourth cause of action for breach of the implied warranty of merchantability.<br><br>**B. Sixth Cause of Action for Fraud**<br><br>The limitations period for a fraud cause of action is three years. (See Code Civ. Proc., § 338, subd. (d).)<br><br>"The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." ( *Ibid.*) This means that "the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.)<br><br>When "[the] complaint shows on its face that [plaintiff's] claim would be barred without the benefit of the discovery rule, [the plaintiff] must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. . . . [C]onclusory allegations will not withstand demurrer." ( *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)<br>Similarly, "[w]hen a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory." (*Mills v. Forestex Co.* (2003)<br>108 Cal.App.4th 625, 641.)<br><br>"[A]s to accrual, 'once properly pleaded, belated discovery is a question of fact.'" (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1320, quoting *Bastian v. County of San Luis Obispo* (1988) 199 Cal.App.3d 520, 527.) "However, whenever reasonable minds can draw only one conclusion from the evidence, the question becomes one of law." (*Snow v. A.H. Robins Co.* (1985) 165 Cal.App.3d 120, 128.)<br><br>Here, the FAC alleges that "Defendant FCA committed fraud by allowing the Subject Vehicle to be sold to Plaintiffs without disclosing that the Subject Vehicle equipped with the 5.7L engine was defective, and which may result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine. It can suddenly affect the driver's ability to control the vehicle or cause a non-collision |

vehicle fire. Even more troubling, the Engine Defect can cause the vehicle to fail without warning while the Vehicle is moving at highway speeds." (FAC, ¶ 91.)

The FAC details that the Plaintiffs brought the subject vehicle in for repair on several occasions. (FAC, ¶ 14-19).

However, the FAC asserts that "Plaintiff discovered Defendants' wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following FCA's unsuccessful attempts to repair them." (FAC, ¶ 52).

The FAC also includes allegations regarding why Plaintiffs did not discover the fraud earlier:

- Making it even more difficult to discover that the Subject Vehicle suffered from a safety defect was Defendant's issuance of various TSBs (see below) and Recalls purporting to be able to fix various symptoms of the defects. (FAC, ¶ 53.)

- Defendant (and its agents, representatives, officers, directors, employees, affiliates, and/or dealerships) concealed the defects, minimized the scope, cause, and dangers of the defects with inadequate TSBs and/or Recalls, and refused to investigate, address, and remedy the defects as it pertains to all affected vehicles as set forth herein. (FAC, ¶ 64.)

- Furthermore, Defendant's fraudulent concealment was ongoing. Defendant blamed the symptoms of the defects on other issues and not the actual defect itself and purported to be able to repair. (FAC, ¶ 65.)

The FAC adequately pleads that, although the subject vehicle was purchased some time ago, the discovery of the fraud did not occur until recently and why Plaintiffs were unable to make the discovery sooner.

Therefore, the court will overrule the demurrer to the 6th Cause of Action on this basis.

**<u>Specificity in Pleading</u>**

Defendants contend that the 6th Cause of Action is not plead with the requisite particularity.

"'Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with

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| | | sufficient specificity to allow defendant to understand fully the nature of the charge made.'" (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73, quoting *Roberts v. Ball, Hunt, Hart, Brown & Baerwitz* (1976) 57 Cal.App.3d 104, 109.) "This particularity requirement necessitates pleading *facts* which 'show how, when, where, to whom, and by what means the representations were tendered.'" *Stansfield v. Starkey*, *supra*, 220 Cal.App.3d at p. 73, quoting *Hills Trans. Co. v. Southwest* (1968) 266 Cal.App.2d 702, 707.)<br><br>In addition, "[c]oncealment is a species of fraud, and '[] must be pleaded with specificity.'" (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878, quoting *Linear Technology Corp. v. Applied Materials, Inc.*, *supra*, 152 Cal.App.4th at p. 132.) However, "the requirement of specificity is relaxed when the allegations indicate that 'the defendant must necessarily possess full information concerning the facts of the controversy' or 'when the facts lie more in the knowledge of the opposite party.'" (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.$4^{th}$ 153, 158, quoting *Bradley v. Harford Acc. & Indem. Co* (1973) 30 Cal.App.3d 818, 825 and *Turner v. Milstein* (1951) 103 Cal.App.2d 651, 658.)<br><br>This also is true when the claim is based upon fraudulent concealment rather than affirmative misrepresentations. As one court has aptly observed, "it is harder to apply [the requirement of specificity] to a case of simple nondisclosure. 'How does one show "how" and "by what means" something didn't happen, or "when" it never happened, or "where" it never happened?'" (*Jones v. ConocoPhillips Co*. (2011) 198 Cal.App.4th 1187, 1199, quoting *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384.)<br><br>In *Dhital v. Nissan North America, Inc*., the Court of Appeal stated:<br><br>Nissan also contends plaintiffs did not provide specifics about what Nissan should have disclosed. But plaintiffs alleged the CVT transmissions were defective in that they caused such problems as hesitation, shaking, jerking, and failure to function. The SAC also alleged Nissan was aware of the defects as a result of premarket testing and consumer complaints that were made both to NHTSA and to Nissan and its dealers. It is not clear what additional information Nissan believes should have been included. . . . We conclude plaintiffs' fraud claim was adequately pleaded. |

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| | | (*Dhital v. Nissan North America, Inc.*, *supra*, 84 Cal.App.5th at p. 845.)<br><br>Similarly, the FAC in this case alleges that:<br><br>• "Plaintiff alleges that prior to the sale of the Subject Vehicle to Plaintiff, FCA knew that the Vehicle and its Engine suffered from an inherent defect, was defective, would fail prematurely, and was not suitable for its intended use." (FAC, ¶ 95).<br>• "Plaintiff is informed, believes, and thereon alleges that FCA acquired its knowledge of the Engine Defect and its potential consequences prior to Plaintiff acquiring the Vehicle, through sources not available to consumers such as Plaintiff, including but not limited to preproduction testing data, early consumer complaints about the Engine Defect made directly to FCA and its network of dealers, aggregate warranty data compiled from FCA's network of dealers, testing conducted by FCA in response to these complaints, as well as warranty repair and part replacements data received by FCA from FCA's network of dealers, amongst other sources of internal information." (FAC, ¶ 96(a)).<br>• "FCA was in a superior position from various internal sources to know (or should have known) the true state of facts about the material defects contained in vehicles equipped with the 5.7L engine…" (FAC, ¶ 96(b)).<br><br>The FAC in this case is sufficiently specific pursuant to *Dhital*. The court finds that Plaintiff has sufficiently pled all elements of a cause of action for fraud, including reliance.<br><br>Defendants cite to *Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, but the Court of Appeal in that case analyzed the sufficiency of the evidence to support a jury verdict and not the sufficiency of the pleadings as in *Dhital*. Defendants also point to non-binding federal authority that applied the federal pleading standard. (See, e.g., *In re Ford Motor Co. DPS6 Powershift Transmission Products Liability Lit.* (C.D. Cal. 2019) 2019 WL 3000646 at p. 7 [applying Federal Rule 9(b)].) Such decisions are not applicable here.<br><br>Therefore, the court will overrule the demurrer to 6th Cause of Action on this basis. |

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| | | **<u>Duty to Disclose</u>**<br><br>Defendant also argues that the FAC fails to establish a duty to disclose because it does not allege the requisite transactional relationship for Plaintiff to allege a fraud claim.<br><br>The Court of Appeal has stated that "[a] duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as 'seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual arrangement.'" (*Shin v. Kong* (2000) 80 Cal.App.4th 498, 509, quoting *Wilkins v. National Broadcasting Co.* (1999) 71 Cal.App.4th 1066, 1082.)<br><br>As the Court of Appeal explained in *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276: Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a "transaction" between the plaintiff and defendant: "In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (*Id.* at p. 311, quoting *Warner Construction Corp. v. City of Los Angeles* (1970) 2 Cal.3d 285, 294, footnotes omitted.)<br><br>According to the *Bigler-Engler v. Breg, Inc.* Court, "[s]uch a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." (*Bigler-Engler v. Breg, Inc.*, *supra*, 7 Cal.App.5th at p. 312).<br><br>However, in *Bigler-Engler v. Breg, Inc.*, "[the defendant] did not transact with [the plaintiff] in any way." *(Id.* at p. 314.) Further, "[the plaintiff] obtained her Polar Care device from [one third-party], based on a prescription written by [another third-party], all without [the defendant's] involvement." (*Ibid.*) Under those circumstances, the Court of Appeal held that there was no duty to disclose. (See *id.* at pp. 314-315.)<br><br>This case, by contrast, does not involve a relationship between the manufacturer and the general public. |

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| | | Instead, the FAC alleges that there was a relationship between Plaintiff and Defendant because Plaintiff and Defendant Ford entered into a warranty contract. Thus, unlike in *Bigler-Engler v. Breg, Inc.*, there was a transaction directly between Plaintiffs and Defendant.<br><br>This reasoning was confirmed in *Dhital*. In that case, which was a Song-Beverly action similar to this one, the Court of Appeal held that a car buyer need not allege a contract with the manufacturer in order to allege a duty to disclose:<br><br>> Nissan argues Plaintiff did not adequately plead the existence of a buyer-seller relationship between the parties, because Plaintiff bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude Plaintiff's allegations are sufficient. Plaintiff alleges that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold Plaintiff' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects.<br><br>(*Dhital v. Nissan North America, Inc*., *supra*, 84 Cal.App.5th at p. 844.)<br><br>Defendant further asserts that the FAC fails to plead that Defendant had exclusive knowledge of the defect and that it actively concealed the defect. However, the FAC alleges that Defendant knew the vehicle had one or more defects and that Defendant acquired that knowledge, prior to Plaintiff's acquiring the Vehicle, through sources not available to consumers such as Plaintiff. (FAC, ¶ 95-97). The FAC, therefore, sufficiently alleges that Defendant has exclusive knowledge.<br><br>Thus, the court will overrule the demurrer to 6th Cause of Action on this basis.<br><br>Plaintiff to give notice. |
| 3 | Mattson vs. General Motors LLC | **TENTATIVE RULING:**<br><br>For the reasons set forth below, Defendant CarMax Auto Superstores, Inc.'s Motion to Strike Portions of Plaintiff's First Amended Complaint is GRANTED. |

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| | | **Statement of Law**<br><br>"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof…." (Code Civ. Proc., § 435; *1550 Laurel Owner's Assn., Inc. v. Appellate Division of Superior Court* (2018) 28 Cal.App.5th 1146, 1153.)<br><br>"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436; *Ng v. Superior Court* (2025) 108 Cal.App.5th 382, 386; *1550 Laurel Owner's Assn., Inc. v. Appellate Division of Superior Court* (2018) 28 Cal.App.5th 1146, 1153.)<br><br>"The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a); *San Jose Sharks, LLC v. Superior Court* (2023) 98 Cal.App.5th 158, 165 [316 Cal.Rptr.3d 393, 399] disapproved, on other grounds, by *Another Planet Entertainment, LLC v. Vigilant Ins. Co.* (2024) 15 Cal.5th 1106, 1150, fn. 9 [alleged actual or potential presence of COVID-19 virus on insured's premises did not, without more, establish direct physical loss of damage to property; thus, the insurance policy did not provide coverage].) " 'We "read allegations of a pleading subject to a motion to strike as a whole, all [their] parts in their context, and assume their truth." ' [Citations.]" (*Ibid*.)<br><br>**Meet-and-Confer Obligation**<br><br>"Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc., § 435.5, subd. (a).) "As part of the meet and confer process, the moving party shall identify all of the specific allegations that it believes are subject to being stricken and identify with legal support the basis of the deficiencies. The party who filed the pleading shall provide legal support for its position that the pleading is legally sufficient, or, in the alternative, how the pleading could be amended to cure any legal insufficiency." (Code Civ. Proc., § 435.5, subd. (a)(1).) |

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| | | "The moving party shall file and serve with the motion to strike a declaration stating either of the following: (A) The means by which the moving party met and conferred with the party who filed the pleading subject to the motion to strike, and that the parties did not reach an agreement resolving the objections raised by the motion to strike. (B) That the party who filed the pleading subject to the motion to strike failed to respond to the meet and confer request of the moving party or otherwise failed to meet and confer in good faith." (Code Civ. Proc., § 435.5, subd. (a)(3).) However, "[a] determination by the court that the meet and confer process was insufficient is not grounds to grant or deny the motion to strike." (Code Civ. Proc., § 435.5, subd. (a)(4).)<br><br>According to CarMax's counsel, he sent Plaintiff's counsel an e-mail on January 5, 2026, and he made four attempts to telephonically confer with Plaintiff's counsel. (Setlur Declaration, ¶¶ 3-4; Exhibits A-B to Setlur Declaration.)<br><br>However, based on Exhibits A and B to the Setlur Declaration, it appears as if Plaintiff's counsel never returned CarMax's counsel's calls.<br><br>Given the foregoing, the Court finds CarMax complied with its meet-and-confer obligation, yet Plaintiff "failed to respond to the meet and confer request of the moving party or otherwise failed to meet and confer in good faith." (Code Civ. Proc., § 435.5, subd. (a)(3).)<br><br>**<u>Merits</u>**<br><br>When a substantive defect is clear from the fact of a complaint, the defendant may attack that portion of the cause of action by filing a motion to strike. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683; see *Grieves v. Superior Court* (1984) 157 Cal.App.3d 149, 163-164 [the adequacy of the plaintiff's punitive damage allegations could be tested by a motion to strike]; see *Security Pac. Nat. Bank v. Lyon* (1980) 105 Cal.App.3d Supp. 8, 11-12 [proper for trial court to grant motion to strike where the allegations of the pleading do not support a claim for punitive damages].)<br><br>"Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief." (Civ. Code, § 1794, subd. (a).) |

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| | | "If the buyer establishes that the failure to comply was willful, the judgment may include, in addition to the amounts recovered under subdivision (a), a civil penalty which shall not exceed two times the amount of actual damages. This subdivision shall not apply … with respect to a claim based solely on a breach of an implied warranty." (Civ. Code, § 1794, subd. (c); see *Duff v. Jaguar Land Rover North America, LLC* (2022) 74 Cal.App.5th 491, 501 [where the only claim plaintiff prevailed on was the breach of implied warranty, civil penalties were not available to him]; accord, *Salas v. Toyota Motor Sales, U.S.A., Inc.* (C.D. Cal., Mar. 31, 2023, No. CV 15-8629 FMO (EX)) 2023 WL 12138754, at *4.)<br><br>Here, the only Song-Beverly claim Plaintiff has brought against CarMax is one for Breach of Implied Warranty. However, as noted, and as Plaintiff concedes, civil penalties under the Song-Beverly Consumer Warranty Action are not available "with respect to a claim based solely on a breach of an implied warranty." (Civ. Code, § 1794, subd. (c).) (Opposition, 5:18-5:20, 6:18-6:20.)<br><br>Thus, Plaintiff's Prayer no. 5, "for civil penalty in the amount of two times Plaintiff's actual damages," is both irrelevant and improper.<br><br>Nevertheless, Plaintiff argues that his Prayer no. 5 is relevant and proper as to Co-Defendant GM. (See Martinez Declaration, ¶ 5 [Plaintiff's counsel admits the request for civil penalties pertain to the first and third causes of action, which are alleged only against GM].) This argument has no merit. While CarMax filed its Motion to Strike before the Court ruled on GM's Motion for Summary Judgment, Plaintiff's Opposition was filed and served on June 17, 2026, more than a month after the Court granted GM's Motion for Summary Judgment.<br><br>In other words, at the time his counsel filed and served the Opposition, Plaintiff knew, or should have known, that Prayer no. 5 was no longer relevant and proper as to GM, who obtained judgment as to all of the Song-Beverly claims asserted against it.<br><br>Plaintiff also concedes in his Opposition that he does not seek punitive damages against CarMax. However, this is unclear from the First Amended Complaint, as Plaintiff's Prayer for Relief states he seeks civil penalties "against Defendants." In paragraph 6 of his First Amended Complaint, Plaintiff defines the term "Defendants" to include GM, CarMax, and Simpson.<br><br>Thus, the Court grant CarMax's Motion to Strike. |

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| | | Moving party to give notice. |
| 4 | White vs. Walmart Inc. | **TENTATIVE RULING:**<br><br>**<u>Demurrer and Motion to Strike</u>**<br><br>Defendant Walmart Inc. demurs to and moves to strike portions of the Complaint filed by Plaintiff Robbie D. White. For the following reasons, the hearing on Defendant's demurrer and motion to strike is CONTINUED to July 15, 2026, at 9:00 a.m. in Department N16. If Plaintiff elects to file a supplemental opposition as discussed below, Plaintiff shall do so by July 8, 2026.<br><br>**<u>Statement of Law</u>**<br><br>A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (*Lambert v. Carneghi* (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.)<br><br>On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)<br><br>A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail, which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare conclusions of law are insufficient. (Code Civ. Proc., §§ 425.10(a), 459; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-50; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1126; *Doheny Park Terrace HOA v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, |

1098-99; *Berger v. California Insurance Guarantee Assn* (2005) 128 Cal.App.4th 989, 1006.)

**Overlength Opposition**

In a non-summary judgment motion, the opening brief and opposition are limited to 15 pages, absent prior leave of court. (Cal. Rules Ct., Rule 3.1113(d).) No reply or closing memorandum may exceed 10 pages. (*Ibid.*) Plaintiff's Opposition is 17 pages, and Plaintiff did not obtain leave of court to file an over-length brief. Rule 3.1113(g) states that an over length brief shall be treated the same as a late filed brief (i.e., the court has discretion not to consider the brief pursuant to Cal. Rules Ct., Rule 3.1300(d), though if the court refuses to consider a brief because it is late, it must note this in the minute order.) The Court will exercise its discretion and consider the entire Opposition.

**Request for Judicial Notice**

With its Reply papers, Defendant filed a request for judicial notice of the docket and the February 8, 2022, Findings and Recommendations in case number 2:20-cv-02383-TLN-AC filed by Plaintiff in the U.S. District Court, Eastern District of California, styled as "*White v. City and County of West Sacramento*." The Court grants this request. (Evid. Code § 452(d).)

However, because it was served with the Reply papers, Plaintiff did not have an opportunity to respond to the request for judicial notice and its significance with respect to the demurrer. Evidence Code § 453 requires that a party requesting judicial notice must "give[] each adverse party sufficient notice of the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request." (Id.; see also *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538 [ordinarily, new evidence presented for the first time in the Reply is not considered, unless the opposing party has notice and an opportunity to respond].)

Thus, this hearing is continued for Plaintiff to have an opportunity to address the request for judicial notice.

**Merits**

A statute of limitations period generally begins to run after a cause of action accrues, which is when the plaintiff discovers, or has reason to discover, the existence of the claim. (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1318; *Norgart v. Upjohn Co.*

(1999) 21 Cal.4th 383, 389.) "Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling." (*Long v. Forty Niners Football Co., LLC* (2019) 33 Cal.App.5th 550, 555.)

The first cause of action alleges Defendant violated the Unruh Civil Rights Act. Under the Unruh Civil Rights Act, for denial of "full and equal accommodations, advantages, facilities, privileges, or services in all business establishments" on the basis of race or national origin, as Plaintiff is alleging here, the statute of limitations is two years. (*Gatto v. County of Sonoma* (2002) 98 Cal.App.4th 744, 759.)

The second cause of action is based on the Ralph Civil Rights Act, Civil Code § 51.7, which is part of the Unruh Act and is also subject to a two-year statute of limitations. (*Gatto, supra,* 98 Cal.App.4th at 760.)

The third cause of action is based on the Bane Act, which is subject to a two-year statute of limitations. (Code Civ. Proc., § 335.1; *Gatto, supra,* 98 Cal.App.4th at 760.)

The fourth cause of action for defamation is subject to a one year statute of limitations. (Code Civ. Proc., § 340, subd. (c); see *Hebrew Academy of San Francisco v. Goldman* (2007) 42 Cal.4th 883, 895.)

The fifth cause of action for intentional infliction of emotional distress is subject to a two year statute of limitations. (*Wassmann v. South Orange County Community College District* (2018) 24 Cal.App.5th 825, 853.) And the sixth cause of action for negligent infliction of emotional distress is subject to a one year statute of limitations. (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 323.)

Thus, Plaintiff's claims are governed either by a one or two year statute of limitations.

According to the FAC, Defendant's allegedly wrongful conduct occurred on May 26, 2023. (FAC, ¶¶ 7-18.) Plaintiff filed this action on June 9, 2025 – over two years after the allegedly wrongful conduct.

Arguing that the claims are not time barred, Plaintiff relies on Code Civ. Proc. § 352(a), which provides:

> If a person entitled to bring an action … is, at the time the cause of action accrued either under the age of majority or

> lacking the legal capacity to make decisions, the time of the disability is not part of the time limited for the commencement of the action.

(Code Civ. Proc., § 352(a).)

The FAC alleges:

> 19. The applicable statutes of limitation were subject to suspension pursuant to Code of Civil Procedure § 352(a) because, following the incident, Plaintiff experienced multiple debilitating conditions, both concurrently and sequentially, that materially and functionally impaired his ability to manage legal affairs and meaningfully assess or pursue his legal rights. This medically documented diagnosis and physician advisements constituted a factual condition of disability that existed during the periods alleged herein and cannot be resolved as a matter of law at the pleading stage.
> 20. Following the incident, Plaintiff experienced a severe mental and physical health crisis that materially and functionally impaired his ability to manage legal affairs and meaningfully assess or pursue his legal rights.
> 21. Specifically, from late 2023 through July 2025, Plaintiff was under continuous medical care for the following conditions:
> a. Severe trauma-related psychological conditions, including Post-Traumatic Stress Disorder and Major Depressive Disorder, resulting in clinically documented impairments in concentration, executive functioning, and emotional regulation, as reflected in Kaiser Permanente mental health records.
> b. A debilitating inguinal hernia requiring surgical intervention and resulting in post-operative complications that imposed sustained physical pain, functional limitation, and medical restrictions.
> c. These conditions collectively created a functional impairment that materially and substantially impaired Plaintiff's ability to comprehend, evaluate, and effectively pursue his legal rights during the relevant periods.

Generally, "[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (*Committee for Green Foothills v. Santa Clara County Bd. of*

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| | | *Supervisors* (2010) 48 Cal.4th 32, 42 [internal citations omitted]).<br><br>However, it is a "well-recognized proposition that if on the face of the complaint the action appears barred by the statute of limitations, plaintiff has an obligation to anticipate the defense and plead facts to negative the bar. (*Union Carbide Corp. v. Superior Court* (1984) 36 Cal.3d 15, 25 [internal citations omitted].) "[P]laintiff must plead facts which show an excuse, tolling, or other basis for avoiding the statutory bar ...." (*Spray, Gould & Bowers v. Associated Internat. Ins. Co*. (1999) 71 Cal.App.4th 1260, 1266 fn. 4.) Put another way, "the 'plaintiff must "plead around" the defense, by alleging specific facts that would avoid the apparent defense. Absent such allegations, the complaint is subject to demurrer for failure to state a cause of action ....' " (*Gentry v. eBay, Inc*. (2002) 99 Cal.App.4th 816, 824.)<br><br>The issue is whether the FAC pleads " 'specific facts,' " which, if proven, could support a finding that Plaintiff lacked legal capacity at the time Plaintiff's claims accrued. (*Gentry, supra*, 99 Cal.App.4th at p. 824.) For purposes of Section 352, a plaintiff lacks capacity if they are incapable of caring for his or her property or transacting business or understanding the nature or effects of his or her acts. (*Alcott Rehabilitation Hospital v. Superior Court* (2001) 93 Cal.App.4th 94, 101.)<br><br>Plaintiff alleges he experienced "debilitating conditions, both concurrently and sequentially (FAC, ¶19), but Plaintiff is required to "plead facts to negative the [statute of limitations] bar." (*Union Carbide, supra*, 36 Cal.3d at p. 25; see also *Gentry, supra*, 99 Cal.App.4th at p. 84.) The FAC does not plead specific facts showing that Plaintiff lacked legal capacity on May 26, 2023. Instead, the FAC alleges on multiple occasions that Plaintiff's alleged incapacity began "following the incident." (FAC, ¶¶ 19 and 20.) More specifically, Plaintiff alleges facts regarding his alleged incapacity that relate to "late 2023 through July 2025." (FAC, ¶ 21.)<br><br>Further, Defendant has provided judicially-noticeable documents that show that Plaintiff was actively litigating in federal court during his alleged mental and physical health crisis. Specifically, on the date of the incident in this matter (May 26, 2023), Plaintiff filed a motion to change venue in the Eastern District of California. (Defendant's Request for Judicial Notice, Exhibit 1.) Over the course of the next several months, Plaintiff filed at least 7 more pleadings. (Ibid.)<br><br>Courts have found that a plaintiff's litigation activity negates a claim of a lack of capacity under Section 352. (See, e.g., *McColm v. Santa Clara County* (N.D. Cal., Jan. 15, 1997, No. C-95-20856-JW) 1997 |

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| | | WL 33016, at *2 [finding that Plaintiff's litigation activity is relevant for purposes of determining Plaintiff's capacity under Code Civ. Proc. § 352]; see also *Est. of Blue v. County of Los Angeles* (9th Cir. 1997) 120 F.3d 982, 984 [taking judicial notice of court filings in a related case to affirm the district court's decision to dismiss the plaintiff's complaint as untimely and deny the plaintiff equitable tolling]; *Willis v. Lathrop Const. Associates* (N.D. Cal., Feb. 25, 1998, No. C 97-3203 SI) 1998 WL 118184, at *1, *aff'd* (9th Cir. 1999) 172 F.3d 61 ["Defendants have filed various motions to dismiss, and have included requests for judicial notice, which are granted, concerning prior lawsuits and files handled by plaintiff during the years between 1982 and now. Based upon these lawsuits and files, it is clear that plaintiff has been able to "transact business" and "understand the nature or effects of his acts" within the meaning of § 352(a)."]; *Quan v. Smithkline Beecham Corp.* (9th Cir. 2005) 149 Fed.Appx. 668, 670 ["The facts that Plaintiff had hired a lawyer and filed a separate employment discrimination action are matters of undisputed public record, of which we can take judicial notice. [Citation.] Plaintiff's ability to attend to such matters demonstrates that he is not insane within the meaning of the statute."].)<br><br>The Court is inclined to sustain the demurrer, perhaps without leave to amend. However, the Court will first offer Plaintiff an opportunity to address the request for judicial notice submitted by Defendant.<br><br>Defendant to give notice. |
| 5 | Mendoza vs. ISL Employees, Inc. | **TENTATIVE RULING:**<br><br>**<u>Motion to Compel Arbitration</u>**<br><br>Defendants ISL Employees, Inc., Integral Senior Living, LLC, and Vivante Newport Center, LLC move to compel Plaintiff Cristal Mendoza to arbitrate her claims against Defendants and stay this action pending completion of arbitration. For the following reasons, the unopposed motion is GRANTED.<br><br>On March 28, 2024, Plaintiff reviewed and signed the Employment Acknowledgment containing an Arbitration Agreement. (Torres Dec. ¶¶ 3-17 and Ex. B.) The arbitration provision states in relevant part:<br><br>> Employee, on the one hand, and, on the other hand ISL EMPLOYEES, INC. and any of its past, present or future parents, subsidiaries, predecessors, affiliates, successors, officers, directors, assigns, investors, agents, owners, managing agents and insurers ("Company") for itself and also |

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| | | on behalf of any professional employer organization affiliate of Paychex, Inc. (for convenience collectively "Paychex" and Paychex has agreed to be bound by this Agreement if executed on behalf of Company and will be treated as a party to and beneficiary of this Agreement) and any of Paychex s past, present or future parents, subsidiaries, predecessors, affiliates, successors, officers, directors, assigns, investors, agents, owners, managing agents and insurers, mutually desire to resolve Disputes (defined below), arising out of or relating to Employee s employment with Company and enter into this Mutual Dispute Resolution Agreement ("Agreement").<br>In exchange for the mutual promises contained in this Agreement, and as a condition of Employee s continued employment with Company, Company, Employee, and Paychex (collectively, the Parties ) agree that, subject to the exclusions in Section 2, any claim, dispute, or controversy arising out of or relating to Employee's employment with Company, application for employment or the separation of that employment ("Disputes") must be submitted to final and binding arbitration in accordance with the terms of this Agreement.<br>…<br>4) This Agreement, any arbitration proceedings held pursuant to this Agreement, and any state or federal court or other proceeding concerning arbitration under this Agreement are expressly subject to, and governed by, the Federal Arbitration Act, 9 U.S.C. § 1 et seq. ( FAA ). The Parties acknowledge that Company's business and Employee's employment involve interstate commerce<br><br>(Torres Dec., Ex. A.)<br><br>**<u>Federal Arbitration Act</u>**<br><br>The Federal Arbitration Act ("FAA"), which includes both procedural and substantive provisions, governs agreements involving interstate commerce. The Agreement at issue in this matter expressly states that the FAA applies. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)<br><br>The FAA states that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) The Supreme Court has described this provision as reflecting both a "liberal federal policy favoring arbitration," and the "fundamental |

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| | | principle that arbitration is a matter of contract." (*AT & T Mobility LLC v.* Concepcion (2011) 563 U.S. 333.) The FAA permits agreements to arbitrate to be invalidated by "generally applicable contract defenses, such as fraud, duress, or unconscionability." (*Id*.) When deciding whether a valid arbitration agreement exists, courts generally apply "ordinary state-law principles that govern the formation of contracts." (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944.)<br><br>On a motion to compel arbitration, the court's role is limited to deciding: "(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute." (*Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; *Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218 ["By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration."].) "[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration." (*Green Tree Fin. Corp. v. Randolph* (2000) 531 U.S. 79, 91.)<br><br>**<u>The Agreement Covers the Claim Asserted by Plaintiffs</u>**<br><br>Defendants have met their burden of demonstrating the existence of a valid arbitration agreement with Plaintiff decedent. (Torres Dec., Ex. A.) In covering "any claim, dispute, or controversy arising out of or relating to Employee's employment with Company, application for employment or the separation of that employment," the Agreement covers Plaintiff's claims against Defendants.<br><br>Accordingly, the Motion to Compel Arbitration is GRANTED, and the action is STAYED pending the completion of arbitration. (Code Civ. Proc. § 1281.4.)<br><br>An ADR Review Hearing is set for 9:00 a.m. on November 3, 2026, in Department N16.<br><br>Defendants shall give notice of this ruling. |
| 6 | Mathews vs. Hyundai Motor America | **TENTATIVE RULING:**<br><br>For the reasons set forth below, Defendant Hyundai Motor America's unopposed motion to compel Plaintiff Kevin Matthews to arbitration and stay action is GRANTED. |

Defendant's request for judicial notice is GRANTED. (Evid. Code § 452 subds. (d), (h).)

**Statement of Law**

A court shall order arbitration if it determines an agreement to arbitrate exists, unless the moving party waived arbitration, grounds exist for revocation of the agreement, or a party to the agreement is also a party to a pending action involving the same transaction with a third party and there is a possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2.) If the court orders arbitration, it shall, upon motion of either party, stay the action or proceeding until the completion of the arbitration, or until such earlier time as the court specifies. (Code Civ. Proc., § 1281.4; *Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 620.)

There is a strong public policy favoring arbitration, and any doubts regarding arbitrability are resolved in favor of arbitration, "unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute." (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 185.) However, ordinary principles of contract interpretation apply, meaning the court must determine whether the parties agreed to arbitrate the claims at issue, the scope of the arbitration clause, and the terms of the arbitration clause. (*Id*.) In determining the applicability of an arbitration agreement, the court should attempt to give effect to the parties' intentions, considering the agreement as a whole, and in light of the usual and ordinary meaning of the language of the agreement. (*Id*. at pp. 185-186.)

**Application of the FAA**

The Federal Arbitration Act ("FAA"), which includes both procedural and substantive provisions, governs agreements involving interstate commerce.

The FAA states that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) The Supreme Court has described this provision as reflecting both a "liberal federal policy favoring arbitration," and the "fundamental principle that arbitration is a matter of contract." (*AT & T Mobility LLC v. Concepcion* (2011) 563 U.S. 333.) The FAA permits agreements to arbitrate to be invalidated by "generally applicable contract defenses, such as fraud, duress, or unconscionability." (*Id*.)

Defendant contends that the FAA applies because automative sales necessarily involve interstate commerce (citing to *United States v. Oliver* (9th Cir. 1995) 60 F.3d 547, 550). Furthermore, the Warranty provides: “This agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16.” (Decl. of Ameripour., Ex. 2.)

The court finds that the FAA applies.

**The Arbitration Agreement**

In support of Defendant’s motion, Defendant attaches as Exhibit 2 to the Declaration of counsel the Owner’s Handbook & Warranty Information (“Warranty”), which contains the following arbitration provision:

**BINDING ARBITRATION FOR CALIFORNIA VEHICLES ONLY**

**PLEASE READ THIS SECTION IN ITS ENTIRETY AS IT AFFECTS YOUR RIGHTS THIS SECTION DOES NOT PRECLUDE YOU FROM FIRST PURSUING ALTERNATIVE DISPUTE RESOLUTION THROUGH BBB AUTO LINE AS DESCRIBED IN THE “ALTERNATIVE DISPUTE RESOLUTION” PROVISION IN SECTION 3 OF THIS HANDBOOK.**

If you purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law. If either you or we elect to resolve our dispute via arbitration (as opposed to in a court of law), such binding arbitration shall be administered by and through the American Arbitration Association (AAA) under its Consumer Arbitration Rules.

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| | | […]<br><br>This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us (including our affiliated companies) relating to or arising out of your vehicle purchase, use or performance of your vehicle, or the vehicle warranty subject to arbitration to the maximum extent permitted by law. The arbitrator (and not a court) shall decide all issues of interpretation, scope, and application of this agreement.<br><br>In any arbitration, the arbitrator shall be bound by the terms of this agreement and shall follow the applicable law. The arbitrator shall not have the power to commit manifest errors of law, and any award rendered by the arbitrator that employs a manifest error of law may be vacated or corrected by a court of competent jurisdiction for such error. The arbitrator may only resolve disputes between you and us and may not consolidate claims without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others , or issue any award or remedy in arbitration against or on behalf of anyone who is not a named party to the arbitration, as permitted by law. In other words, you and we may bring claims against the other only in your or our individual capacity, and not as a plaintiff or class member in any class or representative action to the maximum extent permitted by law. You and we acknowledge and agree that, to the fullest extent permitted by law, we are each waiving the right to participate as a plaintiff or class member in any purported class action lawsuit, class-wide arbitration, private attorney general action, or any other representative proceeding. If a court or arbitrator decides that any part of this agreement to arbitrate cannot be enforced as to a particular claim for relief or remedy, then that claim or remedy (and only that claim or remedy) must be brought in court and must be stayed pending arbitration of the arbitrable claims and remedies. If a court or arbitrator decides that any part of this agreement cannot be enforced as to a particular request for public injunctive relief, then that request for public injunctive relief (and only that request for public injunctive relief) must be brought in court and must be stayed pending arbitration of the arbitrable remedies. If arbitration is elected by either party, the parties collectively agree that they waive their right to a jury trial.<br><br>Notwithstanding the above, either you or we may file a lawsuit in small claims court for any claims that SECTION 4 otherwise require binding arbitration, if the small claims court has jurisdiction. In addition, either you or we may invoke any AAA Consumer Arbitration Rules that allow you or we to have a small claims court |

decide any claims that otherwise require binding arbitration. This agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16. Judgment upon any award in arbitration may be entered in any court having jurisdiction.

**IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY USING THE VEHICLE, OR REQUESTING OR ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE WITH THESE TERMS, PLEASE CONTACT US AT OPT-OUT@HMAUSA.COM WITHIN THIRTY (30) DAYS OF YOUR PURCHASE OR LEASE TO OPT-OUT OF THIS ARBITRATION PROVISION.**

(Decl. of Ameripour, ¶ 4, Ex. 2 at pp. 12-14.).

A party moving to compel arbitration bears an initial burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–166.) The moving party "can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.) For this step, "it is not necessary to follow the normal procedures of document authentication." (*Condee, supra,* at 218.) If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.

Here, Defendant meets its initial prima facie burden of establishing the existence of a written arbitration provision in the Owner's Handbook and Warranty Information (the "Warranty").

Plaintiff did not oppose this motion. Accordingly, Plaintiff did not meet his shifted burden.

**<u>The Arbitration Agreement Covers the Dispute at Issue</u>**

The agreement to arbitrate in the Warranty applies to: "any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase,

<table>
<tr><td></td><td></td><td>advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law.” (Decl. of Ameripour, Ex. 2.)<br><br>Therefore, the agreement to arbitrate contained in the Warranty is broad enough to encompass Plaintiff’s claims for breach of implied warranty, breach of express warranty, and violation of the Song Beverly Consumer Warranty Act.<br><br>Plaintiff did not oppose, and, therefore, failed to demonstrate that any of his claims fall outside of the Arbitration Agreement. Plaintiff also failed to present any challenges to the Arbitration Agreement and failed to argue why it should not be enforceable.<br><br>Accordingly, the Motion to Compel Arbitration is granted, and the action is stayed pending the completion of arbitration. (Code Civ. Proc. § 1281.4.)<br><br>An ADR Review Hearing is set for 9:00 a.m. on November 3, 2026, in Department N16.<br><br>Defendant shall give notice of this ruling.</td></tr>
<tr><td>7</td><td>Fuentes vs. Tran</td><td>TENTATIVE RULING:<br><br>For the reasons set forth below, the motion by Justin Farahi of Farahi Law Firm, APC, to be relieved as counsel for Plaintiff Jimmy Anthony Fuentes is GRANTED.<br><br>An attorney may withdraw even without cause as long as “withdrawal can be accomplished without undue prejudice to the client’s interests.” (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) It is within the court’s discretion as to whether to deny an attorney’s request to withdraw because such withdrawal would cause injustice or undue delay in the proceeding; however, such discretion is to be exercised reasonably. (See Mandell v. Sup. Ct (1977) 67 Cal.App.3d 1, 4.)</td></tr>
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| | | A notice of motion and motion to be relieved as counsel under CCP section 284(2) shall be directed to the client and shall be made on the Notice of Motion and Motion to Be Relieved as Counsel-Civil form (MC-051). (*Cal. R. Ct.* 3.1362(a).) No memorandum is required for the motion. (*Cal. R. Ct.* 3.l362(b)). The motion shall be accompanied by a declaration stating in general terms, without compromising the confidentiality of the attorney-client relationship, why counsel is making a motion instead of filing a consent. (*Cal. R. Ct.* 3.1362(c)). If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. R. Ct. 3.1362(d)).<br><br>The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees (*People v. Prince* (1968) 268 Cal.App.2d 398, 406), the client's insistence on an action that is not justified under existing law or by good faith argument (*Estate of Falco v. Decker* (1987) 188 Cal.App.3d 1004, 1015), and a conflict of interest between counsel and the client (*Aceves v. Superior Court* (1996) 51 Cal.App.4th 584, 592).<br><br>Here, the motion is procedurally and substantively sufficient. Counsel has provided the reason for withdrawal—a breakdown in the attorney-client relationship. Counsel has properly served the client. The client has not filed an opposition establishing prejudice. As this case is in its early stages, with trial not yet set, the court does not find any prejudice in granting the motion.<br><br>For this reason, the motion is granted. The order relieving counsel shall become effective upon the filing of a proof of service showing that the signed order has been served on the client.<br><br>Moving counsel to give notice. |
| 8 | Kimes vs. Rich | **TENTATIVE RULING:**<br><br>**<u>Terminating Sanctions</u>**<br><br>For the reasons set forth below, Plaintiff Conrad Phillip Kimes' motion for terminating sanctions is DENIED. |

**Reply Brief Exceeds Page Limit**

As a preliminary matter, the court notes that Plaintiff's Reply exceeds the ten-page limit pursuant to Cal. R. Ct., Rule 3.113, subd. (d). Plaintiff's reply brief is a total of 26 pages, not including the "supplemental" reply brief that was filed. The court will not consider any page beyond the tenth page of the Reply brief, including any of the pages in the supplemental Reply brief.

**Statement of Law**

Plaintiff cites to Code Civ. Proc. § 2023.030, which states in pertinent part:

> To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:
>
> (a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

…

> (d) The court may impose a terminating sanction by one of the following orders:

…

> (3) An order dismissing the action, or any part of the action, of that party.

…

Additionally, Code Civ. Proc. § 2031.310:

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| | | (a) On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:<br>….<br>(i) Except as provided in subdivision (j), if a party fails to obey an order compelling further response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of, or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).<br><br>"A trial court has broad discretion to impose discovery sanctions, but two facts are generally prerequisite to the imposition of nonmonetary sanctions … (1) absent unusual circumstances, there must be a failure to comply with a court order, and (2) the failure must be willful." (*Biles v. Exxon Mobil Corp*. (2004) 124 Cal.App.4th 1315, 1327; see also, *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1423.)<br><br>"The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should 'attempt [ ] to tailor the sanction to the harm caused by the withheld discovery.' [Citations.]" (*Doppes v. Bentley Motors, Inc*. (2009) 174 Cal.App.4th 967, 991.)<br><br>Finally, Code Civ. Proc. § 2023.040 provides: "A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought."<br><br>**<u>Merits</u>**<br><br>First, Plaintiff failed to comply with Code Civ. Proc. § 2023.040. There is no notice of motion. Nor does Plaintiff specify in his opening paragraphs every person, party and/or attorney against whom the sanction is sought and the type of sanction. However, Defendants do not raise this point.<br><br>Defendants contend that terminating sanctions are inappropriate because Plaintiff failed to establish that Defendants violated any |

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| | | court order. “The statutory requirement that there must be a failure to obey an order compelling discovery before the court may impose a nonmonetary sanction for misuse of the discovery process provides some assurance that such a potentially severe sanction will be reserved for those circumstances where the party's discovery obligation is clear and the failure to comply with that obligation is clearly apparent.” (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1423).<br><br>Plaintiff’s argument for terminating sanctions rests on the purported failure to produce photographs despite prior requests. Plaintiff did not file a motion to compel production, but rather requests that this court award terminating sanctions against Defendants. But this is an extreme remedy. Plaintiff failed to show why less drastic sanctions would not be effective. Accordingly, the court denies the motion for sanctions.<br><br>Alternatively, Plaintiff moves to compel the production of photographs that were identified in the “sworn testimony” of Mr. Carroll. However, Plaintiff failed to establish that Mr. Carroll was ever served with requests for production or had an obligation to produce his own photographs. (See Decl. of Whirl, ¶¶ 4, 5).<br><br>Both parties agree that photographs were produced, which were attachments to the insurance carrier (see Decl. of Whirl, ¶ 3), and Plaintiff does not contest that he failed to propound requests for production to Mr. Carroll, specifically.<br><br>Accordingly, this request for relief is also denied.<br><br>**<u>Reopen Exhibit and Witness “Cut-Offs” and “Lists”</u>**<br><br>For the reasons set forth below, Plaintiff Conrad Phillip Kimes’ motion to reopen exhibit and witness cutoff is DENIED.<br><br>First and foremost, it is not clear what type of relief Plaintiff is requesting. His motion is titled a motion “to reopen exhibit and witness cut-off”. Plaintiff argues in his opening paragraph that he requests that the court reopen exhibit and witness cut-offs, contending that “evidentiary gaps have been identified that require supplementation” and “reopening the cut-off will not prejudice the Defendants.” (Motion, 1:15-18). Defendants, in their Opposition, cite to the requirements for a motion to reopen discovery brought under Code Civ. Proc. § 2024.050. |

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| | | However, Plaintiff titles his Reply brief "Motion to Reopen Exhibit and Witness Lists". (Emphasis added [See ROA 440]). Plaintiff then goes on to identify specific witnesses and exhibits that are "sought to be added." Plaintiff then states: "Plaintiff respectfully requests that this Court grant the Motion to Reopen the Exhibit and Witness List, admit these critical documents into the record." (Reply, 5:27-28).<br><br>To the extent Plaintiff is requesting that the court allow him to supplement his witness and exhibit list for trial, the motion is denied as moot, as trial has now been continued to 11/2/26.<br><br>To the extent Plaintiff is requesting that the court reopen discovery, the motion is also denied.<br><br>Code Civ. Proc. § 2024.050 states in relevant part:<br><br>(a) On motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.<br><br>(b) In exercising its discretion to grant or deny this motion, the court shall take into consideration any matter relevant to the leave requested, including, but not limited to, the following:<br>(1) The necessity and the reasons for the discovery.<br>(2) The diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier.<br>(3) Any likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party.<br>(4) The length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action.<br><br>First, Plaintiff failed to provide a meet and confer declaration with the motion as required by Code Civ. Proc. § 2024.050, subd. (a). Plaintiff did not provide any declaration with his Motion. He filed a declaration with his Reply (see ROA 439) but did not attest to a meet and confer. |

Second, Plaintiff failed to establish in his motion which discovery needs to be obtained and the necessity and reasons for this discovery. The only contention in the motion that addresses the type of discovery Plaintiff seeks and why it could not be made earlier is the following: “Newly developed medical evidence exists that was not available prior to the cut-off.” (Motion, 2:1-2). However, he does not provide any further information about this “medical evidence” and why it is necessary to this action.

Then, in support of his Reply, Plaintiff sets forth the following:

> The witnesses Plaintiff seeks to add include, but are not limited to:
>
> 1. Charlotte Comito. former Beacon Hill HOA Board President. who photographed the debris covering Plaintiffs drain immediately before Defendants' May 10. 2021 cleanup and photographed the drain immediately after cleanup.
> 2. Lisa Mills, Farmers Insurance adjuster. whose emails show that more than six months after Plaintiffs injury she was still requesting photographs from Rich Carroll.
> 3. Treating physicians and emergency room medical providers relating to Plaintiffs December 2025 medical developments, including records identifying a potentially life threatening condition requiring immediate emergency medical treatment
>
> The exhibits Plaintiff seeks to add include, but are not limited to:
>
> 1. Plaintiffs photographs of the drain area and debris condition.
> 2. Charlotte Comito's photographs taken immediately before and immediately after Defendants' May 10, 2021, cleanup, that identically match Plaintiffs post-accident photographs, showing that the HOA and Plaintiff produced their photographs of the accident scent but Defendants DID NOT.
> 3. Defendants' swapped out substituted photos of their Rayco_Bates_0000728 through Rayco_Bates_0000762 production and related emails.
> 4. Emails between Rich Carroll and Lisa Mills.
> 5. Emails from defense counsel Vanessa C. Whirl relating to changing sworn positions regarding the existence. production and identification of photographs

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| | | 6. Deposition excerpts from Rich Carroll and other witnesses concerning the photographs. the drain condition, and the chronology of events<br>7. Additional emails, photographs. correspondence, and documentary evidence omitted from the prior exhibit list by former counsel.<br>8. Plaintiff's May 8, 2021, written communications to Rich Carroll, sent immediately following Plaintiff's hospitalization, notifying Rich Carroll that Defendants debris remained over Plaintiff's drain, informing him and demanding immediate removal of the debris. These communications are highly probative of Defendants' notice, knowledge, opportunity to preserve evidence, and failure to promptly remedy the hazardous condition.<br><br>(See Reply, pgs. 1-3; see also Decl. of Kimes ISO Reply, ¶¶ 6-15).<br><br>There are various issues with the Reply and declaration in support of the Reply.<br><br>First, Plaintiff failed to mention any of these exhibits and witnesses in his motion (other than his vague reference to "medical evidence" that was obtained after the cut-off). Defendants were not provided with an opportunity to address any of this in their Opposition. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 ["The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers."]).<br><br>Second, Plaintiff still does not explain why discovery needs to be reopened (assuming this is the relief he is requesting) because of a December 2025 ER visit.<br><br>Finally, all the other witnesses and exhibits identified in the Reply brief and in Plaintiff's declaration do not relate to the medical evidence that Plaintiff referred to in his motion.<br><br>Accordingly, the motion is denied.<br><br>Defendant shall give notice of both rulings. |
| 9 | S. vs. DOE 1 | **CONTINUED TO 7/16/26 IN DEPT. CM02** |

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| 10 | Sweet vs. Newport Pontoons | **TENTATIVE RULING:**<br><br>**<u>Motion for Leave to Amend</u>**<br><br>Plaintiff Monica Sweet moves for leave to file a proposed second amended complaint. For the following reasons, the motion is GRANTED.<br><br>**<u>Proposed SAC</u>**<br><br>The Proposed SAC adds the general negligence claim inadvertently not included in the operative FAC, reflects the dismissal of Defendant Newport Fun Tours & Rentals, and incorporates the two Doe Defendants who had been previously identified: Krista Keshishian (Doe 4) and Unique Fitness Solutions (Doe 3).<br><br>**<u>Motions for Leave to Amend</u>**<br><br>Civil Procedure Code Section 473(a)(1) provides that "[t]he court may . . . in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading . . . ." The court's discretion will usually be exercised liberally to permit amendment of the pleadings. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified. (*Ibid.*)<br><br>The court will usually not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. The preferred practice is to "permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings. [Citation omitted.] (*Kittredge Sports Co. v. Super. Ct.* (1989) 213 Cal.App.3d 1045, 1048.) Denying a motion for leave to amend based on the validity of a proposed amendment is most appropriate "in cases in which the insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment." (*California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-81 [disapproved on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390].)<br><br>**<u>Procedural Requirements</u>**<br><br>A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading, which must be |

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| | | serially numbered to differentiate it from previous pleadings or amendments; and (2) state what allegations in the previous pleading are proposed to be deleted/added, if any, and where, by page, paragraph, and line number, the deleted/additional allegations are located. (Cal. Rules of Ct., Rule 3.1324(a).) The motion must also be supported by a declaration that specifies: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Ct., Rule 3.1324(b).)<br><br>Here, Plaintiff complied with the procedural requirements of Rule 3.1324. (*See* Silverthorne Decl., Ex. C; Not. at pp. 2-5.)<br><br>The court finds the proposed SAC will promote resolution of the full dispute between the proper parties.<br><br>No later than 10 court days after the hearing, Plaintiff shall file the Proposed SAC, which is attached as Exhibit C to the Silverthorne Declaration.<br><br>The court continues the Case Management Conference to December 1, 2026, at 9:00 a.m. in this Department.<br><br>Moving party is ordered to give notice. |
| 11 | Becker vs. The Blow Down, LLC | **TENTATIVE RULING:**<br><br>For the reasons set forth below, Defendant The Blow Down, LLC's Motion for Summary Judgment, or in the Alternative Partial Summary Judgment and Summary Adjudication on the Issue of Punitive Damages is DENIED.<br><br>**<u>Statement of Law</u>**<br><br>"The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843; accord, *Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 876.)<br><br>"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "The motion for summary judgment shall be granted if |

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| | | all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Code Civ. Proc., § 437c, subd. (c); *Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 876.)<br><br>"[T]he summary judgment statute, Code of Civil Procedure section 437c, 'provides a particularly suitable means to test the sufficiency of the plaintiff's prima facie case and/or of the defendant's [defense].' [Citation.]" (*Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1213.)<br><br>"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1); *R.J. Land & Associates Construction Co. v. Kiewit-Shea* (1999) 69 Cal.App.4th 416, 424.) "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)<br><br>"If a motion for summary adjudication is granted, at the trial of the action, the cause or causes of action within the action, affirmative defense or defenses, claim for damages, or issue or issues of duty as to the motion that has been granted shall be deemed to be established and the action shall proceed as to the cause or causes of action, affirmative defense or defenses, claim for damages, or issue or issues of duty remaining." (Code Civ. Proc., § 437c, subd. (n)(1).) |

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| | | “A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).)<br><br>“First, and generally, from commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1213-1214.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)<br><br>“Second, and generally, the party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord, *Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 876-877; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1214; Code Civ. Proc., § 437c, subd. (p)(1) [plaintiff meets its burden by proving each element of its cause of action].) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851.)<br><br>Unless the moving party meets its initial burden, summary judgment cannot be ordered, even if the opposing party has not responded sufficiently, or at all. (*Vesely v. Sager* (1971) 5 Cal.3d 153, 169-170, superseded by statute on another point, as noted in *Ennabe v. Manosa* |

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| | | (2014) 58 Cal.4th 697, 701, 707; *FSR Brokerage, Inc. v. Superior Court* (1995) 35 Cal.App.4th 69, 73, fn. 4.)<br><br>The moving party's evidence is strictly construed, while the opposing party's evidence is liberally construed, and any doubts as to whether summary judgment should be granted must be resolved in favor of the opposing party. (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1214; accord, *Atkins v. St. Cecilia Catholic School* (2023) 90 Cal.App.5th 1328, 1344-1345; *Trop v. Sony Pictures Entertainment, Inc.* (2005) 129 Cal.App.4th 1133, 1143.)<br><br>"The court focuses on finding issues of fact; it does not resolve them. The court seeks to find contradictions in the evidence or inferences reasonably deducible from the evidence that raise a triable issue of material fact. [Citation.]" (*Trop v. Sony Pictures Entertainment, Inc.* (2005) 129 Cal.App.4th 1133, 1143-1144.)<br><br>"Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations.]" (*Weiss v. People ex rel. Department of Transportation* (2020) 9 Cal.5th 840, 864.) "When evaluating the record of a summary judgment motion, the trial court must consider all inferences reasonably deducible from the evidence in the opposing party's favor. [Citations.] The court may not weigh the plaintiff's evidence or inferences against the defendants' as though it were sitting as the trier of fact. The court nevertheless must determine what the evidence or inference could imply to a *reasonable* trier of fact. [Citation.]" (*Gall v. Smith & Nephew, Inc.* (2021) 71 Cal.App.5th 117, 123.)<br><br>**<u>The Court Denies the MSJ Due to Insufficient Notice</u>**<br><br>"Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc., § 437c, subd. (a)(1).) |

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| | | "The importance of providing the minimum statutory notice of a summary judgment hearing cannot be overemphasized." (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1262.) The purpose of subdivision (a)'s deadline "is to allow the parties time to prepare their opposition and replies and to prepare for the hearing." (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1208.)<br><br>Where a motion for summary judgment was not filed within the deadline of section 437c, subdivision (a), the motion "was untimely under the relevant statute, and the trial court properly disregarded it as untimely." (*Cuff v. Grossmont Union High School Dist.* (2013) 221 Cal.App.4th 582, 596.)<br><br>"There is little flexibility in the procedural imperatives of [section 437c] …. As a result, section 437c is unforgiving; a failure to comply with any one of its myriad requirements is likely to be fatal to the offending party." (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1607; see *McCarthy v. CB Richard Ellis, Inc.* (2009) 174 Cal.App.4th 106, 117, quoting *Sierra Craft, Inc. v. Magnum Enterprises, Inc.* (1998) 64 Cal.App.4th 1252, 1256 ["it is important that all of the procedural requirements for the granting of such a motion be satisfied before the trial court grants the remedy"]; see *Boyle v. CertainTeed Corp*. (2006) 137 Cal.App.4th 645, 654 ["Code of Civil Procedure section 437c's provision setting the minimum notice period for the hearing of a summary judgment motion also sets a statewide statutory standard that may not be varied by trial court orders"].)<br><br>Subdivision (a) of section 437c of the Code of Civil Procedure "does not contain any language authorizing courts to shorten the [81-day] notice. ' " ' "It is a well recognized principle of statutory construction that when the Legislature has carefully employed a term in one place and has excluded it in another, it should not be implied where excluded." ' " ' [Citation.]" (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 115; see *UAS Management, Inc. v. Mater Misericordiae Hospital* (2008) 169 Cal.App.4th 357, 368 [trial court is without authority to shorten the minimum notice for the motion over the opposing party's objection].)<br><br>The *McMahon* court recognized that, while courts have inherent authority to manage their calendar and to control proceedings before them, it could not see "how a statute precluding courts from shortening the notice period for the hearing of summary judgment motions defeats or materially impairs this authority. Indeed, legislation that places far greater restrictions on a court's ability to |

control its calendar has been approved. [Citations.]" (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117.)

For example, in *Robinson*, defendants mail-served plaintiffs with their MSJ 76 days before the hearing date, with the MSJ set 18 days before trial. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1260.) While the trial court recognized that the MSJ was untimely served, it continued the MSJ four days so the MSJ would be heard 80 days after it was mail-served. (*Id*. at p. 1261.) The Court of Appeal held it was an abuse of discretion for the trial court to have done so, as the express statutory language confirmed the moving party had to comply with the timing requirements of section 437c, and " 'trial courts do not have authority to shorten the minimum notice period for summary judgment hearings.' [Citation.]" (*Ibid*.; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 10:80.5)

Instead, where the moving party notices the hearing in less than the required time, notice must begin anew. In *Robinson*, for example, instead of simply continuing the MSJ by four days, the trial court should have required the moving party to provide new notice that complies with the section 437c. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267-1268; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 10:80.6.)

"Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition." (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117–118.) The *McMahon* court concluded by holding "that, in light of the express statutory language, trial courts do not have authority to shorten the minimum notice period for summary judgment hearings." (*Id.* at p. 118; accord, *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1262.)

Following *McMahon*, the Court of Appeal for the Second District, Division 7, recognized that the trial court has discretion to shorten the initial 60-day period to bring a motion for summary judgment on a showing of good cause, as well as to shorten the 30-day period in which a motion for summary judgment must be heard before trial. "However, the Legislature did not similarly authorize a trial court to shorten the minimum notice period for hearings on summary

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| | | judgment motions. Such discretionary language is notably absent from the statute. Moreover, the statutory language regarding minimum notice is mandatory, not directive. This section of the statute states, 'Notice of the motion and supporting papers *shall* be served on all other parties to the action *at least* 28 days [now 75] before the time appointed for hearing' and twice thereafter refers to the 28–day period of notice as being 'required.' " (*Urshan v. Musicians' Credit Union* (2004) 120 Cal.App.4th 758, 764.)<br><br>An exception exists where the parties consent to shortened notice. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1261; *Credit Suisse First Boston Mortgage Capital, LLC v. Danning, Gill, Diamond & Kollitz* (2009) 178 Cal.App.4th 1290, 1301.) However, the Court should not infer a waiver of the notice period simply based on the opposing party's silence. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1264; *Urshan v. Musicians' Credit Union* (2004) 120 Cal.App.4th 758, 768.) Instead, "[w]aiver of minimum notice … should only be based on the affirmative assent of the affected parties." (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1264; *Urshan v. Musicians' Credit Union* (2004) 120 Cal.App.4th 758, 768.)<br><br>Defendant may contend that Plaintiff's Opposition opposes the MSJ on its merits, such that she has waived any claim of inadequate service. (See *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 696-698 [although moving party did not provide sufficient service, opposing party opposed the MSJ on its merits, thus waiving any claim of inadequate service or notice]; see *Yanez v. Vasquez* (2021) 65 Cal.App.5th Supp. 1, 9 [while plaintiff raised the issue of inadequate notice in the opposition, he did not claim to have suffered any prejudice in drafting a response or in preparing for the hearing, such that the position is waived]; see *National Grange Order of Patrons of Husbandry v. California Guild* (2017) 17 Cal.App.5th 1130, 1147-1148 [defendants opposed the summary judgment motion with voluminous papers, such that they failed to make an affirmative showing of any prejudicial error].) The Court rejects this argument.<br><br>While Plaintiff technically addressed each cause of action and the claim for punitive damages, it cannot be said that she did so meaningfully. The abbreviated manner in which Plaintiff presented her Opposition makes clear that Plaintiff's Opposition is not one that was supported by "voluminous papers," or with detailed legal analysis. (See *National Grange Order of Patrons of Husbandry v. California Guild* (2017) 17 Cal.App.5th 1130, 1147-1148 [defendants opposed the summary judgment motion with voluminous papers, such that they failed to make an affirmative showing of any |

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| | | prejudicial error]; see *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1208 [the purpose of subdivision (a)'s deadline "is to allow the parties time to prepare their opposition and replies and to prepare for the hearing"]; see *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267 [where a motion for summary judgment was not timely filed or served, the opposing party is faced with the dilemma of risking a loss on the motion if it does not address the merits at all, or it addresses the merits to some extent but does not adequately show prejudice due to the untimely notice].)<br><br>Here, the Opposition is a mere 10 pages long, and Plaintiff submits but two exhibits, as well as a declaration from Plaintiff, that can be most generously described as cursory.<br><br>Moreover, Plaintiff's Opposition clearly objected to the insufficient notice, such that the Court would not infer Plaintiff waived the notice period simply because she filed an Opposition. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1264; *Urshan v. Musicians' Credit Union* (2004) 120 Cal.App.4th 758, 768.)<br><br>The Court denies the MSJ.<br><br>Plaintiff to give notice. |
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